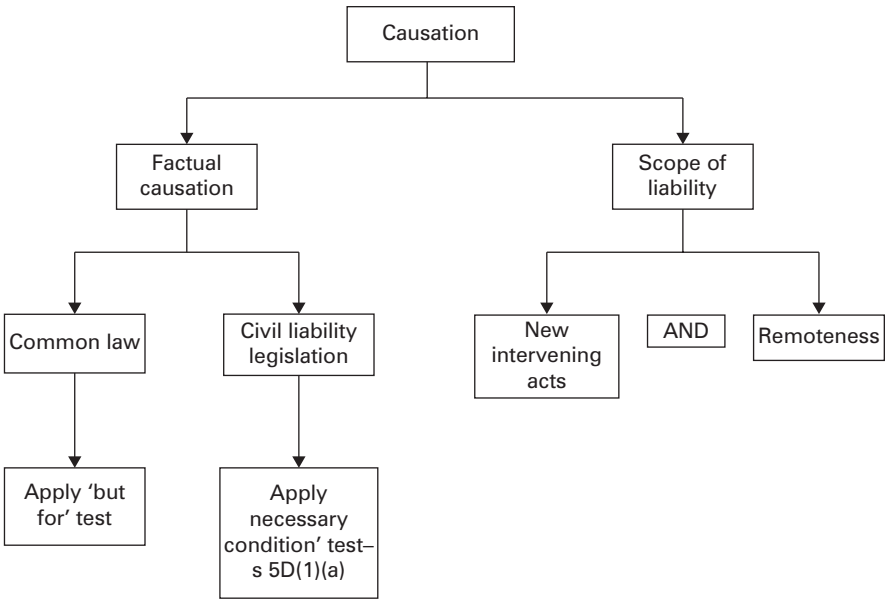
Contributions

[12.170] Where multiple tortfeasors are jointly and severally liable for damage, the plaintiff may choose to recover the whole amount against only one of them.[229] The plaintiff may (for example) choose to sue the person with the "deeper pockets". However, there is a statutory mechanism, known as contribution, by which a tortfeasor held liable for the full amount of damage may seek a contribution against another tortfeasor.[230] It is a mechanism that in no way affects the plaintiff and is a matter between the tortfeasors themselves and so where there are joint or separate, concurrent tortfeasors, the risk that one of them is insolvent or not able to pay the full amount of damages awarded lies with the other tortfeasors, not the plaintiff.

Guide to Problem Solving

Causation 1

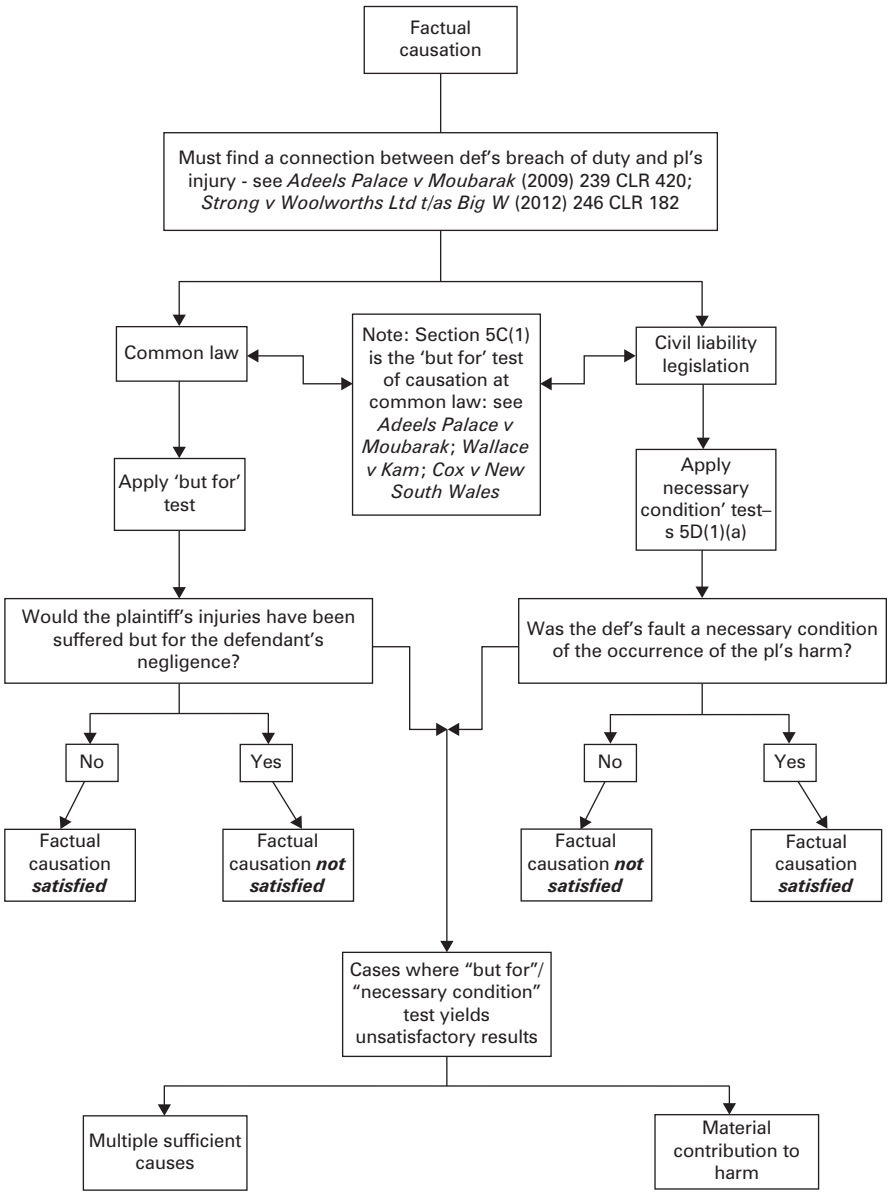


229 Except here the proportionate liability provisions apply in respect of claims for property damage and economic loss, as discussed above.

230 *Civil Law (Wrongs) Act 2002* (ACT), Pt 2.5; *Law Reform (Miscellaneous Provisions) Act 1956* (NT), Pt IV; *Law Reform (Miscellaneous Provisions) Act 1946* (NSW), s 5(1)(c), 5(2); *Law Reform Act 1995* (Qld), Pt 3; *Law Reform (Contributory Negligence and Apportionment of Liability) Act 2001* (SA), s 6; *Wrongs Act 1954* (Tas), s 3; *Law Reform (Contributory Negligence and Tortfeasors' Contribution) Act 1947* (WA), s 7(10)(c). For Victoria, see *Wrongs Act 1958*, Pt IV which differs significantly from the preceding legislative provisions.

Source: Bunn, Allcock, Allison & Shircore, Tort Law Principles (Thomson Reuters, 3rd ed, 2025), pp 433-435. Provided for LAWS2400/LAWS8040 students via iLearn.

Causation 2 – Factual Causation



Causation 3 – Factual Causation

